

Police Employee Adjustment Act, 2019

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Act No. 16 of the year 2076

An Act Made to Provide for the Adjustment of Police Employees into Nepal Police and Provincial Police

Preamble: Whereas, it is desirable to make legal provisions relating to the adjustment of police employees into Nepal Police and Provincial Police,

The Federal Parliament has enacted this Act. 1. Short Title and Commencement: (1) This Act may be cited as the "Police Employees Adjustment Act, 2076."

(2) This Act shall come into force on the eighth day from the date of its certification. 2. Definitions: Unless the subject or context otherwise requires, in this Act,-

(a) "Police employee" means a police employee serving in Nepal Police at the time of the commencement of this Act.

(b) "Provincial Ministry" means the Ministry looking after the subject of internal affairs of the Province.

(c) "Ministry" means the Ministry of Home Affairs of the Government of Nepal.

(d) "Adjustment" means the act of posting a police employee to a position in the organizational structure of Nepal Police or Provincial Police approved pursuant to this Act.

(e) "Committee" means the Organization and Management Survey Committee referred to in sub-section (2) of Section 3. 3.

Organizational Structure and Sanctioned Posts: (1) For the purpose of adjustment pursuant to this Act, the organizational structure and sanctioned posts of Nepal Police and Provincial Police shall be as determined by the Government of Nepal. (2) For the purpose of making recommendations to determine the organizational structure and sanctioned posts pursuant to sub-section (1), there shall be an Organization and Management Survey Committee in the Ministry as follows:- (a) Secretary of the Ministry - Coordinator (b) Inspector General of Nepal Police - Member (c) Joint Secretary, Office of the Prime Minister and Council of Ministers - Member (d) Joint Secretary, Ministry of Finance of the Government of Nepal - Member (e) Joint Secretary, Ministry of Law, Justice and Parliamentary Affairs of the Government of Nepal - Member (f) Secretary of the Provincial Ministry of the concerned Province - Member (g) Joint Secretary (looking after administration), Ministry - Member-Secretary (3) The meetings of the Committee and the procedure relating thereto shall be as determined by the Committee itself. (4) The Committee shall prepare an organization and management survey report, including the details of the posts specifying the grades and positions to be held in Nepal Police and Provincial Police, based on the functions to be performed and the justification for the peace, security and

order of the Federal or Province level, and shall make recommendations to the Ministry. (5) Based on the recommendation made by the Committee pursuant to sub-section (4), the Ministry shall submit a proposal to the Government of Nepal for determining the organizational structure and sanctioned posts of Nepal Police and Provincial Police. (6) The Committee may constitute sub-committees as necessary to assist in its work.

4. Preparation of Details of Police Employees: (1) The Ministry shall, within thirty days from the date of commencement of this Act, prepare the details of police employees for the purpose of adjustment of police employees. (2) For the purpose of preparing the details pursuant to sub-section (1), the Ministry shall base it on the details of police in the National Cadre Management Information System and may, as necessary, request details of police employees from the Police Headquarters. The Police Headquarters shall provide the details so requested. 5.

Publication of Notice for Adjustment: (1) Pursuant to this Act, the Ministry shall publish a notice for adjustment into Provincial Police, calling for applications from police employees, detailing the positions, ranks, and their numbers for police employees of the rank of Deputy Superintendent of Police or below to be adjusted in each Province. (2) While calling for applications pursuant to sub-section (1), details specifying the number of positions and ranks to be adjusted in each Province and which position or grade of police employees currently in Nepal Police may be adjusted to which position or grade in the Province shall be published on the websites of the Ministry and the Police Headquarters. (3) A police employee desiring to be adjusted into the service of Provincial Police shall, within the period specified in the notice published pursuant to sub-section (1), submit an application to the office designated by the Ministry, as prescribed by the Ministry. (4) Notwithstanding anything contained in this Section, a police employee who has not submitted an application for adjustment shall not be deemed to be prevented from being adjusted into Provincial Police subject to this Act. 6. Preparation of Details: Based on the applications received pursuant to Section 5, the Ministry shall prepare the details of police employees to be adjusted into the Provincial Police of each Province. 7.

Adjustment of Police Employees: (1) The Ministry shall adjust police employees of the rank of Deputy Superintendent of Police or below into the organizational structure and sanctioned posts of Provincial Police determined pursuant to Section 3, based on the details prepared pursuant to Section 6 and the basis pursuant to Section 8. (2) The Ministry shall issue the adjustment order for a police employee of Gazetted level adjusted pursuant to sub-section (1), and the Police Headquarters shall issue the adjustment order for a police employee of Non-Gazetted level. (3) While adjusting such a police employee into the organizational structure and sanctioned posts determined pursuant to Section 3, as per sub-section (1), two additional salary increments (grades) shall be added to the salary increment (grade) he/she has been receiving, and he/she shall be adjusted accordingly. (4) If the salary applicable upon adjusting a police employee into Provincial Police pursuant to this Section is lower than the salary previously received by him/her, the salary shall be equalized by adding grades. (5) Notwithstanding anything contained in the prevailing law, if the additional grade granted under sub-sections (3) and (4) during adjustment into Provincial Police exceeds the maximum grade that such employee is entitled to receive, the grade so added shall also be provided. (6) Except upon recommendation by a Medical Board constituted by the Government of Nepal stating that the police employee adjusted into Provincial Police pursuant to this Section is unfit to remain in service due to ill health, or in case of mandatory retirement, if such employee resigns or takes voluntary retirement before completing a minimum service period of one year from the date of adjustment, such employee shall be entitled only to the facilities receivable from the position held prior to adjustment. (7) Police employees other than those adjusted into Provincial Police pursuant to this Section shall be deemed to have automatically remained in Nepal Police. (8) Police employees who have remained in Nepal Police pursuant to sub-section (7) shall be adjusted into the positions of Nepal Police determined pursuant to Section 3. (9) Notwithstanding

anything contained in sub-section (8), if the number of police employees who have remained in Nepal Police pursuant to sub-section (7) exceeds the sanctioned posts of the concerned position of Nepal Police determined pursuant to Section 3, the Ministry shall adjust them giving priority successively to seniority in the working position and seniority in age. 8.

Basis for Adjustment of Police Employees: (1) While adjusting a police employee into Provincial Police pursuant to this Act, it shall be done based on the following grounds successively, according to the order of preference mentioned in the application submitted pursuant to sub-section (3) of Section 5:- (a) Seniority in the working position, (b) Province where working for at least one year, (c) Current permanent residence address, (d) Address mentioned in the citizenship certificate, (e) Seniority in age. (2) While adjusting into Provincial Police pursuant to sub-section (1), adjustment shall be made, as far as possible, based on the choice of the police employee, so that spouses fall within the same Province. 9. Police Employees May be Deputed: (1) If positions in the organizational structure and sanctioned posts of Provincial Police determined pursuant to Section 3 cannot be filled even after adjustment pursuant to Section 7, police employees from among those in the pool cadre pursuant to Section 16 may be deputed to Provincial Police for a specified period to perform the duties of equivalent positions. (2) For the purpose of deputing police employees to Provincial Police pursuant to sub-section (1), the Ministry shall prepare details of police employees in the pool cadre pursuant to Section 16. (3) A police employee deputed to Provincial Police pursuant to this Section shall perform functions as a member of Provincial Police. (4) Except for the Provincial Police Chief, the concerned body or authority of the Provincial Government may transfer a police employee deputed pursuant to this Section from one office or body within the Province to another office or body of equivalent position. (5) If a police employee deputed pursuant to this Section resigns, such police employee is promoted or transferred to a position within the Nepal Police cadre, or the position becomes vacant due to the death of such police employee, the Provincial Government may proceed with the process of filling such vacant position pursuant to the Provincial law. 10.

Deputation of Provincial Police Chief: (1) The Government of Nepal shall depute a Deputy Inspector General of Nepal Police as the Chief of Provincial Police. (2) A police employee deputed as the Provincial Police Chief shall wear the insignia of Provincial Police and perform functions as a member of Provincial Police. (3) The remuneration and facilities of the Provincial Police Chief shall be as per Provincial law, subject to the standards prescribed by Federal law. (4) Notwithstanding anything contained in sub-section (3), the remuneration and facilities receivable by the Provincial Police Chief shall not be less than the remuneration and facilities receivable by the equivalent position in Nepal Police. (5) The Government of Nepal may transfer a police employee deputed as the Provincial Police Chief to another Province or to any body under Nepal Police, in coordination with the concerned Provincial Government. 11. Special Provisions Relating to Deputation of Senior Superintendent of Police and Superintendent of Police: (1) While adjusting into Provincial Police pursuant to this Act, the Ministry shall depute police officers of equivalent rank from Nepal Police to the positions of Senior Superintendent of Police and Superintendent of Police. (2) The Senior Superintendent of Police and Superintendent of Police deputed to Provincial Police pursuant to sub-section (1) shall wear the insignia of Provincial Police and perform functions as a member of Provincial Police. (3) The Provincial Government shall operate and mobilize the Senior Superintendent of Police and Superintendent of Police deputed to Provincial Police pursuant to sub-section (1) as members of Provincial Police, according to Provincial law. (4) The Senior Superintendent of Police and Superintendent of Police deputed to Provincial Police pursuant to sub-section (1) may be transferred outside the Province or to any position in Nepal Police with the consent of the Provincial Government. Provided that, if from the perspective of peace and security or for acting against conduct rules it is not suitable to retain a police employee in that

Province, the Government of Nepal may transfer him/her at any time.

Information of such transfer shall be provided to the concerned Provincial Government. (5) If the position of Senior Superintendent of Police or Superintendent of Police deputed to Provincial Police pursuant to sub-section (1) becomes vacant for any reason, it shall be filled by promotion from within Provincial Police according to Provincial law, subject to the standards prescribed by Federal law. (6) Notwithstanding anything contained in sub-section (5), if the vacant position of Senior Superintendent of Police or Superintendent of Police in Provincial Police cannot be filled by promotion pursuant to that sub-section, the Ministry may depute a police officer of equivalent rank from Nepal Police. (7) The position of Senior Superintendent of Police or Superintendent of Police deputed to Provincial Police pursuant to sub-section (1) or (6) shall remain in the pool cadre of the Police Headquarters of Nepal Police. (8) The Senior Superintendent of Police and Superintendent of Police deputed to Provincial Police pursuant to this Section shall be eligible candidates for promotion to higher positions in Nepal Police as per Federal law. (9) The remuneration, facilities and transfers within the Province of the Senior Superintendent of Police and Superintendent of Police deputed to Provincial Police from Nepal Police pursuant to this Act shall be as per Provincial law, subject to the standards prescribed by Federal law. (10) Notwithstanding anything contained in sub-section (9), the remuneration and facilities receivable under Provincial law shall not be less than the remuneration and facilities receivable by the equivalent position in Nepal Police. 12.

Filling of Posts: (1) If, after adjustment or deputation pursuant to Section 7 or 9, positions in the sanctioned posts of Provincial Police determined pursuant to Section 3 remain vacant and cannot be filled, the Provincial Ministry shall arrange for filling positions below the rank of Superintendent of Police according to Provincial law, informing the Ministry. (2) Notwithstanding anything contained in sub-section (1), if the law relating to Provincial Police Service has not been enacted and the Provincial Public Service Commission has not been formed, the Provincial Ministry may write to the Ministry for filling such vacant positions. (3) Upon receiving a request to fill positions in Provincial Police pursuant to sub-section (2), the Ministry shall arrange for the selection of candidates according to the provisions for filling positions in Nepal Police for filling such positions, and shall recommend the selected candidates to the Provincial Ministry for appointment. (4) Upon receiving recommendations for appointment pursuant to sub-section (3), the concerned authority shall give appointment as a member of Provincial Police. (5) In case vacant positions of Provincial Police cannot be filled pursuant to this Section, upon the request of the Provincial Government, the Government of Nepal may depute police employees of equivalent rank from Nepal Police. 13.

Obligation to Report for Duty: (1) A police employee adjusted or deputed pursuant to this Act shall report for duty in the Province of adjustment or deputation within fifteen days, excluding travel time. (2) Notwithstanding anything contained in sub-section (1), a police employee who is in the following situation at the time of adjustment or deputation shall report for duty in the Province pursuant to that sub-section within fifteen days from the expiry of the following period:- (a) A police employee on maternity leave or maternity care leave, after the expiry of such leave, (b) A police employee on mourning or funeral leave, after the expiry of such leave, (c) A police employee under suspension, after the expiry of such suspension, (d) A police employee on study leave, after the expiry of such leave, (e) A police employee hospitalized due to illness, after being discharged from the hospital. (3) Notwithstanding anything contained in the prevailing law, a police employee who fails to report for duty within the period under sub-section (1) or (2) shall be retired from service by the authority empowered to issue departmental punishment orders. (4) Before retiring a police employee from service pursuant to sub-section (3), a reasonable opportunity shall be given to submit a clarification and explanation according to the prevailing law. (5) A police employee retired pursuant to sub-section (3) shall

receive facilities according to the prevailing law. (6) The empowered authority of the concerned Province shall have the police employee adjusting into the Province pursuant to this Act report for duty and assign responsibilities. (7) An authority who fails to ensure reporting for duty and assign responsibilities pursuant to sub-section (6) shall be subject to departmental action according to the prevailing law. 14. Provisions Relating to Transfer and Promotion of Police Employees Adjusted into Provincial Police: (1) Notwithstanding anything contained in the prevailing law, a police employee adjusted into Provincial Police pursuant to this Act may be transferred within that Province by the concerned authority of the Province according to the law relating to Provincial Police. (2) A police employee adjusted into Provincial Police pursuant to this Act, who has fulfilled the minimum educational qualification and service period required for promotion, may be a candidate for promotion to a vacant position in the Provincial Police of the Province of adjustment. 15.

Standards Relating to Service Conditions and Security: (1) When making a law relating to its Provincial Police, the Province shall make the following provisions:- (a) That while amending the organizational structure and sanctioned posts of the Provincial Police Office, the position held by a police employee adjusted into Provincial Police shall remain in existence until such employee retires, (b) That the position of Deputy Inspector General of Nepal Police, established to serve as the Chief of Provincial Police pursuant to this Act, shall remain in existence, (c) To ensure that the salary and other service facilities received at the time of adjustment are not decreased, (d) To ensure that a police employee who has fulfilled the educational qualification and service period required for adjustment and promotion in Provincial Police shall be an eligible candidate for promotion to a position in Provincial Police, (e) To make provision that if a police employee adjusted into Provincial Police requests a transfer to another Province due to marriage in that Province, transfer may be made in coordination with both Provinces. (2) Notwithstanding anything contained elsewhere in this Act, until the law relating to the service, conditions, and facilities of Provincial Police is enacted, the service, conditions, and facilities of a police employee adjusted pursuant to this Act shall be according to the service conditions and facilities applicable prior to adjustment. (3) No law shall be enacted which adversely affects the service conditions relating to salary, allowance, gratuity, pension, medical expenses, and other facilities applicable at the time of adjustment of a police employee adjusted pursuant to this Act. (4) The concerned Provincial Government shall provide the salary, allowance, and other facilities of a police employee adjusted or deputed into Provincial Police pursuant to this Act. (5) Notwithstanding anything contained in sub-section (4), if a police employee adjusted or deputed into Provincial Police pursuant to this Act is separated from service for any reason, the gratuity, pension, medical expenses, and accumulated leave amount receivable by him/her shall be borne by the Government of Nepal. While providing facilities in this manner, the facilities receivable by a Provincial Police employee separated from service shall not be less or more than the facilities receivable by a police employee of equivalent rank in Nepal Police upon retirement.

Provided that, a police employee dismissed from service on grounds rendering him/her disqualified for future police or government service shall not be provided the facilities pursuant to this sub-section. (6) Police employees adjusted into Provincial Police pursuant to this Act shall be provided opportunities for promotion to positions in Nepal Police as provided for in Federal law. (7) Opportunities such as studies under foreign scholarships received by Nepal Police, training, seminars, workshops shall be provided to employees adjusted into Provincial Police pursuant to this Act, based on necessity and justification. (8) While deputing police to United Nations missions, providing facilities of the Police Welfare Fund, Police Hospital, and Police School as per prevailing law, police employees adjusted into Provincial Police pursuant to this Act shall also be involved. (9) While providing grants to Provincial Governments by the Government of Nepal as per prevailing law, the additional expenditure incurred due to adjusting or deputing police employees into Provincial Police pursuant to this Act shall also be taken into account, among other things. 16. Pool Cadre to

Remain: (1) Police employees remaining after adjustment into the approved sanctioned posts of Nepal Police pursuant to sub-section (9) of Section 7 shall automatically fall into reserve, and the posts of such employees shall be deemed to remain in the pool cadre of the Police Headquarters. (2) Except when deputed to Provincial Police, police employees in the pool cadre pursuant to sub-section (1) shall be deputed by the Police Headquarters to subordinate offices for work. (3) If a police employee in the pool cadre pursuant to sub-section (1) is promoted to a higher position, transferred to a vacant position in the Nepal Police cadre, or ceases to be in service for any reason, such post shall be automatically abolished. (4) Police employees in the pool cadre pursuant to this Section shall be eligible candidates for promotion to higher positions in Nepal Police as per Federal law. 17.

Performance Evaluation and Departmental Punishment: (1) While evaluating the performance of a police employee deputed to Provincial Police pursuant to this Act, the marks given shall involve the participation of the concerned authority of the Province as per Federal law. (2) If a police employee deputed to Provincial Police pursuant to this Act violates the law relating to service conditions, the concerned authority of the Province may impose departmental punishment as prescribed by Federal law. (3) For the purposes of evaluating the performance of, and imposing departmental punishment on, the Provincial Police Chief pursuant to this Section, the Secretary of the Provincial Ministry shall be deemed the authority one level higher. 18. Coordination Committee: (1) For the purpose of coordinating and monitoring matters relating to adjustment of police employees and providing directions as necessary, there shall be a Coordination Committee as follows:- (a) Minister of Home Affairs of the Government of Nepal - Coordinator (b) Minister looking after the subject of internal affairs of the concerned Province - Member (c) Secretary of the Office of the Prime Minister and Council of Ministers - Member (d) Secretary of the Ministry - Member (e) Secretary of the Ministry of Law, Justice and Parliamentary Affairs of the Government of Nepal - Member (f) Inspector General of Nepal Police - Member-Secretary (2) Concerned subject matter experts may be invited to the meeting of the Coordination Committee pursuant to sub-section (1) as necessary. (3) The Coordination Committee pursuant to sub-section (1) shall regulate its own procedure. 19. Records of Sanctioned Posts: (1) The National Cadre Management Information System shall keep updated records of the organizational structure and sanctioned posts of Nepal Police and Provincial Police determined pursuant to Section 3. (2) The National Cadre Management Information System shall keep updated details of the pool cadre pursuant to Sections 11 and 16. (3) The National Cadre Management Information System shall keep updated and secure records of the details, promotions, and retirements of police employees adjusted into Provincial Police pursuant to this Act. (4) The records maintained pursuant to sub-section (3) shall also be made available to the concerned Provincial Government. 20.

Special Provisions Relating to Creation of Posts and Filling of Positions: (1) Notwithstanding anything contained in the prevailing law, until the adjustment work pursuant to this Act is completed, no organizational structure and sanctioned posts shall be created for any body of Nepal Police or Provincial Police, except under the circumstances referred to in Section 3. (2) Notwithstanding anything contained in the prevailing law, after the adjustment of police employees pursuant to this Act, in the positions of Nepal Police Service that become vacant, only the remaining positions after adjusting police employees of the relevant group or sub-group from the pool cadre pursuant to Section 16 based on seniority shall be filled. 21. Matters to be Governed by this Act: Notwithstanding anything contained in the prevailing law, matters provided for in this Act shall be governed by this Act, and other matters shall be governed by the prevailing Nepal law. 22. Arrangement of Necessary Provisions: If any difficulty arises in the course of implementing this Act, the Government of Nepal may make necessary provisions not inconsistent with this Act. 23. Power to Make Rules: For the purpose of implementing this Act, the Government of Nepal may make necessary Rules.